

IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT IN AND FOR MANATEE
COUNTY FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC,
Plaintiff

v.

Case Number 23 CC 1095

CARMEN ROSARIO NIEVES and ANY
UNKNOWN TENANTS
Defendants

FILED FOR RECORD
2023 MAR 16 PM 4:05
CLERK OF CIRCUIT COURT
MANATEE CO FLORIDA

ORDER

This matter came before the Court on Plaintiff's request for default Final Judgment, as to "any unknown tenant." Having reviewed the court file and heard the parties, the Court **ORDERS** as follows.

1. The Plaintiff filed its Complaint for Eviction on February 24, 2023 based on failure to pay rent.
2. On February 24, 2023 summonses were issued as to Carmen Rosario Nieves and Any Unknown Tenants.
3. On March 4, 2023, the Defendant Carmen Rosario Nieves was properly served by posting (process server tried to serve her twice (once on March 3rd and once on March 4th) before posting), and Ms. Rosario Nieves has filed no response. The Court enters a default as to Rosario Nieves.
4. As to "Any Unknown Tenants," however, the Florida Legislature recently passed section 48.184, Florida Statutes, which provides, in pertinent part:

- (1) This section applies only to actions governed by . . . 83.59 . . . and only to the extent that such actions seek relief for the removal of unknown parties in possession of real property. ***
- (2) *A summons must be issued in the name of 'Unknown Party in Possession' when the name of an occupant of real property is not known to the plaintiff and the property occupied by the unknown party is identified in the complaint and summons. A separate summons must be issued for each such unknown occupant.*
- (3) The plaintiff shall attempt to serve the summons on any unknown occupant of the property If service on the unknown occupant is not effectuated on the first attempt, *at least two additional attempts must be made. The three attempts to obtain service must be made once during business hours, once during non business hours, and once during a weekend.* The process server shall make an inquiry as to the name of the unknown occupant at the time of service. The return of service must note the name of the occupant if obtained by the process server or state that the name of the occupant could not be obtained after inquiry. If the name of the occupant becomes known to the plaintiff through the return of service or otherwise, without notice of hearing thereon, all subsequent proceedings must be conducted under the true name of such occupant and all prior proceedings are deemed amended accordingly.

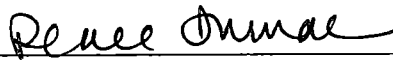
- (4) Service of process must also be made on unknown occupants by both of the following means:
- (a) By attaching the summons and complaint to a conspicuous location on the premises involved in the proceedings.
 - (b) Upon issuance of the summons, by the plaintiff providing the clerk of the court with one additional copy of the summons and complaint for each unknown occupant and a prestamped envelope for each unknown occupant addressed to the unknown occupant at the address of the premises involved in the proceedings. The clerk of the court shall immediately mail a copy of the summons and complaint by first-class mail, note the fact of mailing in the docket, and file a certificate in the court file of the fact and date of mailing. ***

(Emphasis added). That statute became effective January 2, 2023.

- 5. The Court finds that, while service is proper as to Ms. Rosario Nieves, it questions whether service is proper as to "any unknown tenant" pursuant to this new statute.
- 6. Based on the foregoing, the Court questions whether it can enter a default against "any unknown tenant."

It is therefore **ORDERED**: If the Plaintiff intends to proceed with this action against "any unknown tenant," (1) the Plaintiff shall provide to the Court any authority it has that the Court can enter a default against "any unknown tenant" within 10 days of this Order with a separate default final judgment as to "any unknown tenant," or (2) effectuate proper service upon "any unknown tenant".

ORDERED AND ADJUDGED in Chambers, Bradenton, Manatee County, Florida on this 16 day of March 2023



Renee Inman, County Judge

Copies to:

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Carmen Rosario Nieves, 900 9th Ave. East, Lot #53, Palmetto, FL 34221
Any Unknown Tenants, 900 9th Ave. East, Lot #53, Palmetto, FL 34221